

COPY

Recorded April 16, 1979

FORM 100X N.Y. 1960 - WARRANTY AND LEND CONTRACT

TITELAND REGISTERED U.S. PAT. OFFICE
NOTICE: SEE FRONT PUBLICATIONS OFFICE IN 1960

This Indenture

02421

Made the 29th day of March
Nineteen Hundred and Seventy-nine

Between DOROTHY E. FOHARE and CHESTER A. FOHARE, of 7 James
Street, Saranac Lake, Franklin County, New York,

parties of the first part, and

The VILLAGE OF SARANAC LAKE, a municipal corporation,
with office and principal place of business at 10 Main
Street, Saranac Lake, Franklin County, New York,

Witnesseth that the parties of the first part, in consideration of

--THIRTY-SEVEN THOUSAND, FIVE HUNDRED and 00/100--Dollar (\$37,500.00)
lawful money of the United States, and other good and valuable considerations
paid by the party of the second part, do hereby grant and release unto the
party of the second part, its successors
and assigns forever, all THAT PIECE OR PARCEL OF LAND Situate in the Town:

of Harrietstown, County of Franklin and State of New York, Being a
portion of the west part of the Parker Morgan lot in Township No. 21,
Great Tract No. One of Macombs Purchase and lying between the highway
known as Upper Broadway and Colby Pond, and more particularly described
as follows: BEGINNING at a point on the shore of Colby Pond at the
water's edge, and being the northwest corner of a piece or parcel of
land conveyed by the party of the first part to Lee G. Gladd and
Merilda L. Gladd, his wife, by deed dated July 31, 1934; thence S 39°
43' E 16½ feet to a 1½" iron pipe; thence continuing in the same course
35.2 feet to a ½" drill hole; thence continuing in the same course 203
feet to a ½" drill hole; thence continuing in the same course 46.2
feet, being the SW corner of said land conveyed to said Lee G. Gladd
and Merilda L. Gladd; thence N 84° 47' 40" W about 249 feet to a drill
hole in a stone marking the SE corner of a piece or parcel of land
conveyed by Cora W. Dustin to Worthie E. Colyer; thence in a northerly
direction along said Colyer's land 11.75 feet to an iron pipe; thence
in a westerly direction along Colyer's land 38.3 feet to an iron pipe;
thence in a northerly direction along Colyer's land 98.8 feet to a

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stake in the shore of Colby Road, thence in a northeasterly direction along the shore of Colby Pond about 100 feet more or less to the point or place of beginning.

EXCEPTING AND RESERVING from the above described premises a strip of land 3 rods wide off the southerly side of said lot and adjoining to the southerly line of the herein described property as N 84° 47' 40" W for its entire length for a road or right-of-way.

ALSO EXCEPTING a parcel 3 feet in width conveyed by William Winderl, Robert W. Winderl and Frederick J. Winderl dated April 13, 1965 recorded in Liber 426 page 11 in the Franklin County Clerk's office.

Intending to convey a piece or parcel of land bounded on the west by property formerly owned by Worthis E. Colyer, on the south by a road or right-of-way, on the east by property owned by Lee G. Gladd and Merilda L. Gladd, and on the north by Colby Pond.

BEING THE SAME PREMISES conveyed by Dorothy W. Patnode Ransom and Dorothy E. Fobare to Dorothy E. Fobare and Chester A. Fobare, her husband, by deed dated September 15, 1978 and recorded in the Franklin County Clerk's office on September 19, 1978 in Liber 489 of Deeds at Page 441.

File No.

DC FULLER APPRAISAL SERVICE
121 Branch Farm Road
SARANAC LAKE, NY 12983

April 28, 2009

Village of Saranac Lake, NY
 Martin Murphy, Village Manager
 3 Main Street, Suite 1
 Saranac Lake, NY 12983

Appraisal Request:

Property Address:	Moir Road, Saranac Lake NY (vacant land S. of beach)
Tax map ID:	part of 446.-1-29 (Franklin County)
Property Type:	residentially zoned vacant land, waterfront
Reputed Owner:	Village of Saranac Lake
Client:	Village of Saranac Lake
Person Requesting Service:	Jeremy Evans, Community Development Office

Dear Mr. Murphy,

Pursuant to your request, I am happy to submit a proposal for an individual residential vacant land real estate appraisal of the property identified above. The appraisal shall be prepared for the Village of Saranac Lake (the "Client"). This real estate appraisal will be reported in a Summary format, on a General Purpose Vacant Land Appraisal form.

The purpose and intended use of the Appraisal is to render an opinion of market value of the subject property, as unimproved, for the Client's corporate planning purposes. The valuation's effective date will be made as of the date of my physical inspection (current value). The appraisal will report the market value of the Real Estate ("Market Value" defined as published by the FDIC known as 'part 323') in an unencumbered Fee Simple ownership. The Appraisal will be completed in conformance with the "Uniform Standards of Professional Appraisal Practice". Any other use or user of the appraisal has not been identified, and is not authorized by the Appraiser. The appraisal is not transferable and cannot be assigned to another Client, nor can it be used for purposes other than identified above.

A copy of the property's recorded Deed, and a survey map clearly identifying the parcel being valued must be provided to me prior to the preparation and completion of the appraisal.

My total fee for the appraisal services will be \$500.00 USD. Payment terms are as follows: Full payment of the fee (\$500.00) to be invoiced upon completion and to be paid within 30 days of the report's delivery to the Client.

It is further understood that my fee for services is not contingent upon a predetermined value, value range, nor direction of value. It is anticipated that the report will be completed within 25 days from my inspection, providing that no unforeseen events occur which would delay completion. Delivery will be made with one "Hard Copy" sent by regular US mail or hand delivered to your address listed above, as well as a secured .PDF digital (electronic) delivery by email to your address at comdev@saranacknyny.gov.

If these terms are acceptable, please acknowledge with your signature below and return this engagement letter to me by regular USPS mail within 15 days, along with a copy of the last recorded property Deed and a copy of the property's land survey which can positively identify the parcel being valued.

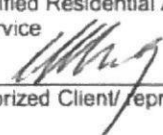
If you have any questions please do not hesitate to call me at (518) 891-9404, or email me at dcfas@roadrunner.com.

Sincerely,



David Fuller, NYS Certified Residential Appraiser #45000033674
 DC Fuller Appraisal Service

Acknowledged: _____



Authorized Client/representative's signature

Date: _____



tel/fax (518) 891-9404

On the web: <http://www.dcfullerappraisal.com>

DAVID C. FULLER
NEW YORK STATE CERTIFIED RESIDENTIAL APPRAISER #45000033674
D.C. Fuller Appraisal Service
121 Branch Farm Road
Saranac Lake, NY 12983-8333

Telephone/Fax (518) 891-9404

LICENCE AND CERTIFICATION BACKGROUND:

- Dec. 1998- present NYS Certified Residential Appraiser (#45000033674)
- Oct. 1994- Dec. 1998 NYS Licensed Residential Appraiser (#47000015086)
- April 1986-Oct. 1993 NYS Licensed Real Estate Salesperson

PROFESSIONAL EXPERIENCE:

Over 2,000 Various Residential Appraisal Assignments completed on a Fee basis, including Waterfront, Proposed Construction, Great Camps, Single Family, 2-4 Family and Vacant Land properties, specialized and concentrated in the Northern Adirondacks- Tri-lakes area.

- Oct. 1990-Present: Residential Fee Appraiser, Sole Proprietor/Owner, *D.C. Fuller Appraisal Service, Saranac Lake, NY*
- Mar. 1997-Jan 1998: Appraisal Staff, *Adirondack Appraisal Associates, Lake Placid NY*
- Oct. 1991-Mar 1997: Appraisal Staff, *North Country Appraisal Service; Lake Placid, NY*
- Oct. 1990- Oct. 1993 Real Estate Sales Staff,, *Coldwell Banker/Walsh Realty, Saranac Lake NY*
- April 1986-Oct. 1990 Real Estate Sales Staff/Appraiser, *Patricia C. Murphy Realty, Saranac Lake*

APPRAISAL EDUCATION EXPERIENCE/ COURSES:

- Feb. 2009 New FNMA Appraisal Policies , Market Conditions and new Form 1004MC
- 2003 - 2008 USPAP Update courses (Mandated)- *Various Schools Bi-Annually*
- Nov. 2007 Private Appraisal Assignments- *McKissock*
- Oct. 2007 FHA Guidelines Update- *McKissock*
- June 2006 Case Studies- Valuation of Upstate NY Real Estate- *Appraisal Institute*
- Dec. 2005 Fair Housing- *McKissock*
- Nov.2005 Appraising for the Secondary Market- *McKissock*
- Nov.2005 Factory Built Housing- *McKissock*
- Oct. 2005 New FNMA Forms/ USPAP Compliance- *NYSSREA*
- Feb. 2004 Relocation Training Program- *ERC*
- Dec. 2003 FHA Guidelines Update- *McKissock*
- Dec. 2001 Blueprint Reading- *Manfred RELC*
- Nov. 2001 Deeds, Plotting and Understanding- *Manfred RELC*
- Nov. 2001 Market/Appraising Distress Properties- *Manfred RELC*
- Oct. 2001 Residential Construction, Land Use/Env. Hazards-*NYSAR*
- Dec. 1999 Environmental Issues in Real Estate
- Nov. 1999 New FHA/HUD Guidelines- *Manfred RELC*
- June 1999 Estimating Accrued Depreciation- *NYSSREA*
- Dec. 1997 R-4:"1 to 4 Family Income Capitalization" *Manfred RELC School, Albany NY*
- Nov. 1997 R-3:"Applied Residential Property Valuation" *Manfred RELC School, Albany NY*
- Oct. 2002 "Ethics & Standards of U.S.P.A.P- new." *Manfred RELC School, Albany NY*
- April 1996 "FHA Appraisal Guidelines" *Manfred RELC School, Albany NY*
- Aug. 1992 R-2:"Valuation Principles and Procedures" *Manfred RELC School, Albany NY*
- Feb. 1992 R-1:"Intro to R.E. Appraising" *NAREA Course 110, NAREA, Glens Falls, NY*

Related Education Experiences:

- Feb.1990 NYS R.E. Brokers Qualifying Course, State exam completed
- Dec. 1985 NYS R.E. Salespersons Course
- 1977- 1979 North Country Community College

Approved for Department of HUD- FHA
Direct Endorsement Lender Selection Roster of Appraisers
Serving member on Board of Governors - NYS Society of Real Estate Appraisers
Appraisal Member- Northern Adirondack Board of Realtors- MLS

"Serving the Greater Tri-Lakes Area"